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26-CLJ-00451 WELLS FARGO BANK, N.A. VS. CHRISTOPHER A BERG

LINE 8

WELLS FARGO BANK, N.A.
CHRISTOPHER A. BERG

STEPHANIE RAMOS
PRO PER

PLAINTIFF: WELLS FARGO BANK'S MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is DENIED without prejudice. It appears from the proof of service that Defendant was served by mail, but the mailing did not include the defendant's apartment number (which is included on the Proof of Service of the summons and in the Court's file). Accordingly, and in light of the lack of opposition, the Court has no way of knowing whether the papers were actually delivered to Defendant.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
MONDAY, AUGUST 31, 2026**

02:00 PM

26-UDL-00672 THE JOHN STEWART COMPANY VS. KAIYA E. MORGANE

LINE 9

THE JOHN STEWART COMPANY
KAIYA E. MORGANE

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: JOHN STEWART COMPANY'S MOTION TO COMPEL DEFENDANT KAIYA E. MORGANE'S RESPONSES TO PLAINTIFF'S DISCOVERY AND FOR SANCTIONS

TENTATIVE RULING:

The Motion of Plaintiff The John Stewart Company ("Plaintiff") to Compel Responses to Form Interrogatories - General, Set One, Form Interrogatories – Unlawful Detainer, Set One, and Request for Production of Documents, Set One, and to Deem Admitted Request for Admissions, Set One, is GRANTED.

Plaintiff establishes that it properly served Defendant Kaiya E. Morgane ("Defendant") with this discovery. (Gavin Decl., ¶¶ 2-6, and Exhs. 1-5.) Defendant failed to provide responses. (Id., ¶ 7.) Plaintiff also filed a proof of service showing that it properly served Defendant with this Motion. (Proof of Service filed August 12, 2026.) Defendant has not opposed this Motion.

Accordingly, Defendant is ORDERED to provide verified responses, without objections, to the form interrogatories and request for production of documents, and produce all responsive documents to the request for production of documents, within five days of service of written notice of entry of the order by Plaintiff.

The matters set forth in Plaintiff's Request for Admissions, Set One, are also DEEMED ADMITTED against Defendant.

Plaintiff's Request for Sanctions is GRANTED. On a motion to compel responses to interrogatories and requests for production, the court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Further, on a motion to deem requests for admissions admitted, it is mandatory that the court impose a monetary sanction on the party whose failure to serve a timely response to the requests for admission that necessitated the motion. (Code Civ. Proc., § 2033.280, subd. (c).) The court finds that sanctions are warranted based on Defendant's failure to respond to the discovery. Defendant is to pay Plaintiff \$585.00 sanctions within thirty days of service of written notice of entry of this order by Plaintiff

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-UDL-00935 RICHARD TOD SPIEKER AND CATHERINE REILLY SPIEKER, CO-TRUSTEES OF THE SPIEKER
LINE 10 LIVING TRUST AND DOING BUSINESS AS STONE CREEK APARTMENTS VS. GLADIS
PERAZA, ET AL.

RICHARD TOD SPIEKER AND CATHERINE REILLY SPIEKER, CO-TRUSTEES OF STEVEN T. NAUMCHIK
THE SPIEKER LIVING TRUST AND DOING BUSINESS AS STONE CREEK
APARTMENTS
GLADIS PERAZA & PEDRO SANCHEZ PRO PER

DEFENDANTS: GLADIS PERAZA AND PEDRO SANCHEZ'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS
FOR PRODUCTION, FORM INTERROGATORIES AND SPECIAL INTERROGATORIES

TENTATIVE RULING:

Motion withdrawn by agreement of the parties.

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